

(6) Regulation 6 of the Town and Country Planning (Modification of Mines Act) Regulations, 1948, and Regulation 5 of the Town and Country Planning (Modification of Mines Act) (Scotland) Regulations, 1948, (which provide that in certain cases the compensation or consideration for a right to work minerals which is granted under the Mines (Working Facilities and Support) Act, 1923, shall be assessed having regard to the amount of the compensation which would be payable for a compulsory acquisition of the minerals), shall not apply to any determination of compensation or consideration made after the passing of this Act.

(7) Until Parliament otherwise determines—

- (a) no application shall be made under section thirty of the Mineral Workings Act, 1951, for the variation of the provisions of any such mining lease as is therein referred to; and
- (b) no order shall be made under the said section thirty on any application made thereunder before the passing of this Act.

4.—(1) This Act may be cited as the Town and Country Planning Act, 1953. Short title and extent.

(2) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Mines (Working Facilities and Support) Act, 1923	13 & 14 Geo. 5. c. 20.
Building Restrictions (War-Time Contraventions) Act, 1946	9 & 10 Geo. 6. c. 35.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Mineral Workings Act, 1951	14 & 15 Geo. 6. c. 60.

CHAPTER 17

White Fish and Herring Industries Act, 1953

ARRANGEMENT OF SECTIONS

White Fish Industry

Section

1. Grants by the Authority towards new vessels and engines.
2. Provisions relating to grants under section one.
3. Borrowing by and advances to the Authority.
4. White Fish Marketing Fund.
5. White fish subsidy.

Herring Industry

Section

6. Grants by the Board towards new vessels and engines.
7. Borrowing by and advances to the Board.
8. Grants to the Board for promotion of herring sales, etc.
9. Allowances of members of the Advisory Council.
10. Extension of functions of the Minister of Food.

General

11. General provisions relating to schemes and orders.
 12. Accounts of grants under sections one and six.
 13. Interpretation.
 14. Consequential amendments and repeals.
 15. Application to Northern Ireland.
 16. Short title, citation and commencement.
- SCHEDULE.—Amendments and repeals.

An Act to provide for the payment out of moneys provided by Parliament of grants in respect of the acquisition of new vessels and engines for use in the white fish and herring industries, and of a subsidy in respect of white fish; to extend the power to make loans out of such moneys to the White Fish Authority and the Herring Industry Board, and the power to make grants out of such moneys to that Board for the promotion of the sale of herring and other purposes; and otherwise to amend the enactments relating to the said industries.
[20th May 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

White Fish Industry

Grants by the
Authority
towards new
vessels and
engines.

1.—(1) Subject to the provisions of this and the next following section, the White Fish Authority may, in accordance with a scheme made by the Ministers with the approval of the Treasury after consultation with the Authority, make to persons engaged or proposing to become engaged in the white fish industry in Great Britain grants in respect of expenditure incurred—

- (a) in the acquisition of new fishing vessels not exceeding one hundred and forty feet in length;
- (b) in the acquisition of new engines for fishing vessels not exceeding one hundred and forty feet in length,

of such amounts and subject to such conditions as may be determined by or under the scheme.

(2) The aggregate amount of the grants which may be made in pursuance of a scheme or schemes under this section shall not exceed nine million pounds; and no grant shall be so made except in pursuance of an application approved by the Authority in accordance with such a scheme before the expiration of the period of ten years beginning with the date of the passing of this Act.

(3) For the purposes of this section a person shall be deemed to be engaged in the white fish industry in Great Britain if he carries on the business of operating one or more vessels registered in Great Britain (of whatever size and in whatever way propelled) for the catching or landing of white fish as defined by section nineteen of the Sea Fish Industry Act, 1951.

(4) Any sums required by the Authority for the payment of grants under this section shall be paid out of moneys provided by Parliament; and any sums received by the Authority by way of refund of any such grant in accordance with conditions attached thereto shall be paid into the Exchequer.

2.—(1) Subject to the provisions of this section, the amount of the grant which may be made in pursuance of a scheme under section one of this Act in respect of expenditure incurred in the acquisition of a vessel shall not exceed the following amount, that is to say:—

Provisions relating to grants under section one.

(a) where the said expenditure does not exceed twenty thousand pounds and the grant is made to an individual who satisfies the Authority that he is or is to be a working owner of the vessel, three-tenths of the said expenditure or five thousand pounds, whichever is the less;

(b) in any other case, one-quarter of the said expenditure.

(2) No grant shall be made in pursuance of a scheme under the said section one in respect of expenditure incurred in the acquisition of an engine for a vessel except to an individual who satisfies the Authority that he is or is to be a working owner of the vessel; and the amount of the grant which may be made in respect of any such expenditure shall not exceed three-tenths of that expenditure or one thousand two hundred and fifty pounds, whichever is the less.

(3) Where any expenditure in respect of which a grant may be made in pursuance of a scheme under the said section one is shared by two or more persons, the amount of the grant which may be so made to any one of those persons shall not exceed such fraction of the grant which could be made to him if he had incurred the whole of that expenditure as is proportionate to his actual share of that expenditure.

(4) No grant shall be made in pursuance of a scheme under the said section one in respect of expenditure incurred in the acquisition of a vessel or engine unless the Authority are satisfied that the contract for the building of the vessel, or for the supply of the engine, as the case may be, was made after the thirty-first day of July, nineteen hundred and fifty-two.

(5) In this section "working owner", in relation to a vessel, means a person who, being the owner or one of the owners of the vessel, regularly goes to sea in it when it is used for the purpose of fishing.

**Borrowing by
and advances
to the
Authority.**

3.—(1) The limit of fifteen million pounds imposed by subsection (2) of section fifteen of the Sea Fish Industry Act, 1951, upon the outstanding amount of the sums which may be borrowed by the Authority under that subsection shall be raised to twenty-five million pounds.

(2) The limit of ten million pounds imposed by subsection (1) of section seventeen of the said Act upon the outstanding amount of the sums which may be advanced by the Ministers to the Authority under that subsection shall be raised to twenty million pounds.

(3) The period of ten years from the passing of the said Act of 1951 during which—

(a) sums may be advanced as aforesaid under subsection (1) of the said section seventeen ; and

(b) grants for purposes of research or experiment may be made to the Authority under subsection (2) of that section,

shall be extended until the expiration of ten years after the passing of this Act.

(4) The provisions of subsection (1) of the said section seventeen shall not be construed as extending the powers of the Authority to borrow money under subsection (2) of the said section fifteen.

**White Fish
Marketing
Fund.**

4.—(1) So much of any sums to be advanced to the White Fish Authority under subsection (1) of section seventeen of the Sea Fish Industry Act, 1951, as is required for the undertaking of operations involving the outlay of working capital shall be paid into a fund (to be called the White Fish Marketing Fund) which shall be established in accordance with directions given by the Treasury and shall be under the control and management of the Ministers.

(2) Notwithstanding anything in subsection (4) of the said section seventeen, any sums received by the Ministers by way of repayment of principal of an advance made out of the White

Fish Marketing Fund shall, if received before the expiration of the period of ten years beginning with the passing of this Act, be paid into that Fund; but the Ministers may at any time repay out of the said Fund into the Exchequer any sums so paid into that Fund.

(3) If it is shown to the satisfaction of the Ministers and the Treasury that any sum representing the principal of an advance made out of the White Fish Marketing Fund or part of such an advance cannot be repaid, the Treasury may direct that the liability of the Authority to the Ministers shall be reduced to the extent of that sum.

(4) The Minister of Agriculture and Fisheries shall prepare, in such form and manner and at such times as the Treasury may direct, an account of the sums received into and paid out of the White Fish Marketing Fund in each financial year.

(5) On or before the thirtieth day of September in each year, the said account and, in a case where the Treasury have directed under subsection (3) of this section that the liability of the Authority to the Ministers shall be reduced, a statement of the reasons for that reduction, shall be transmitted to the Comptroller and Auditor-General, who shall examine and certify the account and lay copies thereof, together with his report thereon, before both Houses of Parliament.

(6) As soon as may be after the expiration of the period of ten years beginning with the date of the passing of this Act, the White Fish Marketing Fund shall be wound up in accordance with directions given by the Treasury, and any sums then standing to the credit thereof shall be paid into the Exchequer.

5.—(1) With a view to promoting the landing in the United Kingdom of a continuous and plentiful supply of white fish, the appropriate Minister may, in accordance with a scheme made by the Ministers with the approval of the Treasury, make grants to the owners or charterers of fishing vessels engaged in catching such fish (being vessels not exceeding one hundred and forty feet in length and registered in the United Kingdom) of such amounts, and subject to such conditions, as may be determined by or under the scheme. White fish
subsidy.

(2) Subject to the provisions of this section, a scheme made thereunder may provide for the payment of grants in the case of any vessel, in respect of white fish landed in the United Kingdom from the vessel during a period prescribed by the scheme or in respect of voyages made during such a period by

the vessel for the purpose of catching such fish and landing them in the United Kingdom or in respect of white fish so landed and of voyages so made ; but no such grant shall be made—

- (a) in respect of a voyage beyond the inshore, near and middle waters as defined by this section ; or
- (b) in respect of fish taken (whether within those waters or not) in the course of such a voyage.

(3) The period prescribed for the purposes of subsection (2) of this section by any scheme made thereunder shall not extend beyond the thirty-first day of March, nineteen hundred and fifty-eight, and shall not in the case of the first such scheme exceed two years.

(4) The aggregate amount of the grants made in pursuance of schemes under this section shall not exceed seven million five hundred thousand pounds or such greater sum (not exceeding ten million pounds) as may be prescribed by an order made by the Ministers with the approval of the Treasury.

(5) In this section the following expressions have the meanings hereby assigned to them, that is to say—

“ the appropriate Minister ” means, in relation to Scotland the Secretary of State concerned with the sea fishing industry in Scotland, and in relation to the remainder of the United Kingdom the Minister of Agriculture and Fisheries, and “ the Ministers ” means the said Secretary of State and the said Minister ;

“ the inshore, near and middle waters ” means waters within the sea area bounded on the north by the parallel of the sixty-third degree of latitude north, on the west by the meridian of the seventeenth degree of longitude west, and on the south by the parallel of the forty-third degree of latitude north ;

“ white fish ” does not include shellfish, but except as aforesaid has the same meaning as in Part I of the Sea Fish Industry Act, 1951.

(6) Any expenses incurred by the appropriate Minister in the making of grants under this section shall be defrayed out of moneys provided by Parliament.

Herring Industry

Grants by the Board towards new vessels and engines.

6.—(1) Subject to the provisions of this section, the Herring Industry Board may, in accordance with a scheme made by the Ministers with the approval of the Treasury after consultation with the Board, make to persons engaged or proposing to become engaged in the herring industry grants in respect of expenditure incurred—

- (a) in the acquisition of new fishing vessels not exceeding one hundred and forty feet in length ;

(b) in the acquisition of new engines for fishing vessels not exceeding one hundred and forty feet in length, of such amounts and subject to such conditions as may be determined by or under the scheme.

(2) The aggregate amount of the grants which may be made in pursuance of a scheme or schemes under this section shall not exceed seven hundred and fifty thousand pounds, and no grant shall be so made except in pursuance of an application approved by the Board in accordance with such a scheme before the expiration of the period of ten years beginning with the date of the passing of this Act.

(3) The provisions of section two of this Act shall apply to grants made by the Board under this section as they apply to grants made by the White Fish Authority under section one of this Act, and references in those provisions to the Authority and to the said section one shall be construed accordingly.

(4) For the purposes of this section a person shall be deemed to be engaged in the herring industry if he carries on the business of operating one or more boats (as defined by the Herring Industry Act, 1935) registered in Great Britain for the catching or landing of herring.

(5) Any sums required by the Board for the payment of grants under this section shall be paid out of moneys provided by Parliament; and any sums received by the Board by way of refund of any such grant in accordance with conditions attached thereto shall be paid into the Exchequer.

7.—(1) The limit of two million five hundred thousand pounds imposed by section seven of the Herring Industry Act, 1935, upon the outstanding amount of the sums which may be borrowed by the Board under that section shall be raised to four million pounds. Borrowing by
and advances
to the Board.

(2) Subject to the provisions of the said section seven, the Ministers may, out of moneys provided by Parliament, advance to the Board on such terms as the Treasury may approve any sums required to be borrowed by the Board during the period of ten years beginning with the date of the passing of this Act for any purpose approved by the Ministers and the Treasury, so long as the total amount outstanding at any time of the sums advanced to the Board under this subsection or under subsection (1) of section four of the Herring Industry Act, 1944, does not exceed three million five hundred thousand pounds.

(3) All sums received by the Ministers by way of interest on an advance made under subsection (2) of this section or made under subsection (1) of the said section four and (except as

otherwise provided by subsection (5) of this section) all sums so received by way of repayment of the principal of such an advance, shall be paid into the Exchequer.

(4) So much of any sums to be advanced to the Board under subsection (2) of this section as is required for the making of loans in connection with export, or for the undertaking of operations involving the outlay of working capital, shall be paid into the Herring Marketing Fund established under section four of the Herring Industry Act, 1944, which shall be under the control and management of the Ministers.

(5) Notwithstanding anything in subsection (3) of this section, any sums received by the Ministers by way of repayment of the principal of sums advanced to the Board out of the Herring Marketing Fund shall, if received before the expiration of the period of ten years beginning with the date of the passing of this Act, be paid into that Fund; but the Ministers may at any time repay out of the said Fund into the Exchequer any sums so paid into that Fund.

(6) The accounts and statements required by subsection (6) of section four of the Herring Industry Act, 1944, to be transmitted to the Comptroller and Auditor-General shall be so transmitted on or before the thirtieth day of September in each year.

(7) Subsections (1) to (3) of the said section four are hereby repealed.

Grants to the Board for promotion of herring sales, etc.

8. The limit of one million five hundred thousand pounds imposed by subsection (1) of section five of the White Fish and Herring Industries Act, 1948, upon the aggregate amount of the grants which may be made out of moneys provided by Parliament under that subsection in respect of expenses incurred by the Board for promoting the sale of herring and other purposes specified therein shall be raised to three million pounds; and the period during which expenses qualifying for such grants must be incurred by the Board shall be extended from the second day of August nineteen hundred and fifty-four until the expiration of ten years after the passing of this Act.

Allowances of members of the Advisory Council.

9. There shall be paid to the members of the Herring Industry Advisory Council out of moneys provided by Parliament such allowances as the Ministers, with the approval of the Treasury, may determine.

Extension of functions of the Minister of Food.

10. Throughout the Herring Industry Acts, 1935 to 1948, the expression "the Ministers" shall include the Minister of Food.

General

11.—(1) Subject to the provisions of this section, any power to make a scheme under this Act shall include power to vary or revoke that scheme by a subsequent scheme.

General provisions relating to schemes and orders.

(2) A scheme under this Act shall not be so varied or revoked as to affect the payment of grant in pursuance of an application approved under the scheme before the coming into operation of the subsequent scheme; and a scheme under section five of this Act shall not be varied by extension of the period prescribed for the purposes of subsection (2) of that section.

(3) Any power of the Ministers to make a scheme under this Act or an order under section five of this Act, shall be exercisable by statutory instrument.

(4) A scheme under this Act shall be of no effect until it is approved by a resolution of each House of Parliament; and an order under section five of this Act shall be of no effect until it is approved by a resolution of the Commons House of Parliament.

12.—(1) The White Fish Authority and the Herring Industry Board shall respectively keep such accounts with respect to grants made by them under section one or section six of this Act as may be directed by the Ministers with the approval of the Treasury, and shall prepare in respect of each financial year a statement of the accounts in such form and giving such information as may be so directed.

Accounts of grants under sections one and six.

(2) The said accounts for each financial year shall be audited (in accordance with a scheme of audit approved by the Ministers), and the statements certified, by the persons appointed in respect of that year to audit the other accounts of the Authority or the Board, as the case may be; and the auditors shall be furnished by the Authority and the Board with copies of their respective statements.

(3) The auditors shall in each case furnish the Ministers with copies of the said statement of accounts together with their report thereon, and the copies and the report shall be sent by the Ministers to the Comptroller and Auditor General not later than the thirtieth day of September following the end of the financial year to which the accounts relate.

(4) The Comptroller and Auditor General shall examine the said statements of accounts and the reports sent to him under the last foregoing subsection and may inspect the accounts kept by the Authority or the Board with respect to grants made by

them under section one or section six of this Act, and shall certify each statement and lay a copy of it together with his report thereon before Parliament.

Interpretation. 13.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“ the Authority ” means the White Fish Authority ;

“ the Board ” means the Herring Industry Board ;

“ the Ministers ” (except in section five and in relation to a scheme or order under that section) means the Minister of Agriculture and Fisheries, the Secretary of State concerned with the sea fishing industry in Scotland and the Minister of Food.

(2) For the purposes of this Act, the length of any vessel shall be deemed to be its length as calculated for the purposes of registration under the Merchant Shipping Act, 1894.

(3) Any reference in this Act to expenditure incurred in the acquisition of a new vessel includes a reference to expenditure incurred in the acquisition of any equipment required for the sailing of the vessel which is sold with the vessel ; and any such reference to expenditure incurred in the acquisition of a new engine for a vessel includes a reference to expenditure incurred in the installation of the engine in the vessel.

(4) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any subsequent enactment, including this Act.

**Consequential
amendments
and repeals.**

14.—(1) The enactments specified in Part I of the Schedule to this Act shall have effect subject to the amendments set out in the second column of that Part, being amendments consequential on the foregoing provisions of this Act.

(2) The enactments specified in Part II of the said Schedule (being enactments which, to the extent specified in the third column of that Schedule, are superseded by this Act or otherwise obsolete) are hereby repealed to the extent so specified.

**Application
to Northern
Ireland.**

15.—(1) Section twenty of the Sea Fish Industry Act, 1951 (which provides for the extension of Part I of that Act to Northern Ireland) shall have effect as if the following provisions of this Act, that is to say:—

(a) sections three and four ;

(b) section thirteen so far as it applies to the said sections three and four ; and

(c) section fourteen and the Schedule so far as they relate to the said Act of 1951,

were contained in the said Part I and had been extended to Northern Ireland (without modification) by an Order in Council under the said section twenty; and the power of Her Majesty to revoke or vary an Order in Council under that section shall accordingly include power to repeal or amend the provisions of this subsection.

(2) Subsections (2) to (4) of section fifteen of the Herring Industry Act, 1935 (which contain consequential provisions relating to the extension of that Act to Northern Ireland) shall have effect as if the following provisions of this Act, that is to say:—

(a) sections seven to ten;

(b) section thirteen so far as it applies to the said sections seven to ten; and

(c) section fourteen and the Schedule so far as they relate to the Herring Industry Acts, 1935 to 1948,

were contained in that Act and had been extended to Northern Ireland under subsection (1) of the said section fifteen.

(3) Sections one, two, six and twelve of this Act shall not extend to Northern Ireland.

16.—(1) This Act may be cited as the White Fish and Herring Industries Act, 1953.

Short title,
citation and
commence-
ment.

(2) Sections one to four of this Act, section twelve so far as it relates to the White Fish Authority, section eleven and section thirteen so far as they apply to the provisions aforesaid, section fourteen and the Schedule so far as they relate to the Sea Fish Industry Act, 1951, and subsection (1) of section fifteen, may be cited with Part I of the last-mentioned Act, as the White Fish Industry Acts, 1951 and 1953.

(3) Sections six to ten of this Act, section twelve so far as it relates to the Herring Industry Board, section eleven and section thirteen so far as they apply to the provisions aforesaid, section fourteen and the Schedule so far as they relate to the Herring Industry Acts, 1935 to 1948, and subsection (2) of section fifteen, may be cited with the last-mentioned Acts as the Herring Industry Acts, 1935 to 1953.

(4) This Act shall come into force one month after the date on which it is passed.

Sections 14, 15,
16.

SCHEDULE

AMENDMENTS AND REPEALS

PART I

CONSEQUENTIAL AMENDMENTS

Enactment

Amendment

The Herring Industry Act,
1935, 25 & 26 Geo. 5.
c. 9.

In section seven, for the words "two million and five hundred thousand pounds" there shall be substituted the words "four million pounds".

In section ten, in subsection (1), after the words "section four of the Herring Industry Act, 1944" there shall be inserted the words "or section seven of the White Fish and Herring Industries Act, 1953".

In section fourteen, in subsection (1), at the end of the definition of "the Ministers" there shall be added the words "and the Minister of Food".

The Herring Industry Act,
1944, 7 & 8 Geo. 6.
c. 32.

In section four, in subsection (4), for the words "subsection (1) of this section" there shall be substituted the words "subsection (4) of section seven of the White Fish and Herring Industries Act, 1953"; in subsection (6), for the words "thirtieth day of November" there shall be substituted the words "thirtieth day of September"; and in subsection (7), for the words from "the period" to "this Act" there shall be substituted the words "the period of ten years beginning with the date of the passing of the White Fish and Herring Industries Act, 1953".

The White Fish and Her-
ring Industries Act, 1948,
11 & 12 Geo. 6. c. 51.

In section five, in subsection (1), for the words "with the second day of August, nineteen hundred and fifty-four" there shall be substituted the words "ten years after the passing of the White Fish and Herring Industries Act, 1953", and for the words "one million five hundred thousand pounds" there shall be substituted the words "three million pounds".

In section ten, for the words "sections two and five" there shall be substituted the words "section two", and for the words "sections seven" there shall be substituted the words "sections five, seven".

The Sea Fish Industry Act,
1951, 14 & 15 Geo. 6.
c. 30.

In section fifteen, in subsection (2), for the words "fifteen million pounds" there shall be substituted the words "twenty-five million pounds".

In section seventeen, in subsection (1), for the words "the ten years beginning with the passing of this Act" there shall be substituted the words "the period beginning with the passing of this Act and ending ten years after the passing of the White Fish and Herring Industries Act, 1953", and for the words "ten million pounds" there shall be substituted the words "twenty million pounds"; and in subsection (2), for the words "said ten years" there shall be substituted the words "said period".

PART II

ENACTMENTS REPEALED

Section and chapter	Short title	Extent of repeal
25 & 26 Geo. 5. c. 9.	The Herring Industry Act, 1935.	Sections eight and nine. In section ten, in subsection (2), the words "the report and account mentioned in subsection (9) of the last foregoing section and".
1 & 2 Geo. 6. c. 42.	The Herring Industry Act, 1938.	Sections three to five. In section six, in subsection (1), the words from "and subsection (3)" to "Board)" and the word "each", and subsection (2). In the Second Schedule the amendments of section nine of the Herring Industry Act, 1935.
7 & 8 Geo. 6. c. 32.	The Herring Industry Act, 1944.	Section one. In section four, subsections (1), (2) and (3). Section five. In the Schedule, the amendments of section nine of the Herring Industry Act, 1935.
11 & 12 Geo. 6. c. 51.	The White Fish and Herring Industries Act, 1948.	In section five, subsection (4). Section six.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Herring Industry Act, 1935	25 & 26 Geo. 5. c. 9.
Herring Industry Act, 1944	7 & 8 Geo. 6. c. 32.
White Fish and Herring Industries Act, 1948 ...	11 & 12 Geo. 6. c. 51.
Sea Fish Industry Act, 1951	14 & 15 Geo. 6. c. 30.

CHAPTER 18

Coastal Flooding (Emergency Provisions) Act, 1953

ARRANGEMENT OF SECTIONS

PART I

WORKS FOR DEFENCE AGAINST SEA WATER

Provisions for enabling river boards to execute works and to have the use thereof

Section

1. Authorisations to do work on embankments etc., and certain other work.
2. Authorisations where highways are affected.
3. Procedure as to authorisations.
4. Ancillary provisions as to authorisations.
5. Right to maintain and use works, etc.
6. Provisions as to purchase of land affected by works and of rights over land.

Provisions as to access to works and protection thereof

7. Right to use private ways.
8. Power to exclude the public from sites of work, etc.
9. Regulations for protection of works.

Compensation and Government contributions

10. Compensation.
11. Government contributions.

Saving for powers under principal Acts

12. Saving for powers under principal Acts.